2:00 PM LINE 12

26-CIV-00382 SANTOS PEREZ VS. ABM INDUSTRIES INCORPORATED, ET AL

SANTOS PEREZ	W. ZEV ABRAMSON
ABM INDUSTRIES INCORPORATED	ALEJANDRO G. RUIZ

DEFENDANT ABM INDUSTRIES INCORPORATED'S MOTION TO COMPEL ARBITRATION

TENTATIVE RULING:

The Motion to Compel Arbitration brought by defendant ABM Industries, Inc. is **GRANTED**.

Plaintiff's Objections to the Declaration of Paige Tamada

The first of the fifteen Objections to the Declaration of Paige Tamada is directed to the entire Declaration, and is **SUSTAINED**. Thus, the other fourteen need not be reached.

Plaintiff's Objections to the Declaration of Scott J. Saylin

Objections Nos. 1 and 3: **OVERRULED**.

Objection No. 2: **SUSTAINED**. (Evid Code, § 1152, subd. (a).)

Defendant's Evidentiary Objections to the Declaration of Santos Perez are **OVERRULED**.

A. Background

ABM hired plaintiff on about June 9, 2023, as a janitor. On May 21, 2025, plaintiff injured his back at work, which he reported to one of his managers, defendant Herber Rodriguez, the next day. Plaintiff was on medical leave for the resulting disability from May 22, 2025, through August 7, 2025. He returned to work with medical restrictions on August 8, 2025, when defendant Rodriguez was out. When Rodriguez returned to work on about August 20, 2025, he refused to continue the accommodations that other managers had made and immediately assigned plaintiff duties that exceeded his restrictions. When plaintiff explained that he could not perform his regular duties without the accommodation that had been approved, Rodriguez terminated plaintiff's employment.

ABM has filed this Motion to ask the court to compel plaintiff to arbitrate this matter pursuant to the Federal Arbitration Act (FAA) and the California Arbitration Act (CAA), and to stay this action pending arbitration. (Code Civ. Proc., §§ 1281.2 & 1281.4.)

B. Governing Law

Under the FAA, the court's role is to determine "whether a valid agreement to arbitrate exists and, if it does, … whether the agreement encompasses the dispute at issue." (*Chiron Corp. v. Ortho Diagnostic Sys., Inc*. (9th Cir. 2000) 207 F.3d 1126, 1130, citations omitted.) The governing California statute provides, in pertinent part, that:

> On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for rescission of the agreement.

(Code Civ. Proc., § 1281.2, subds. (a) & (b).)

C. The Arbitration Agreement

1. The Arbitration Agreement Encompasses Plaintiff's Claims

Defendant has supplied a copy of the Arbitration Agreement. (Suppl. Tamada Decl., ¶ 9, exh. B.) The Arbitration Agreement sets out its scope as follows:

> A "Covered Claim" is, to the maximum extent permissible pursuant to federal law, any claim that the Company has against me or that I have against the Company, its past, present, and future parent(s), subsidiaries, affiliates, and/or their respective past, present, and future officers, directors and/or employees, including but not limited to claims arising and/or relating in any way to my hiring, my employment or association with, my compensation, and/or the end of my employment with, the Company.

(Suppl. Tamada Decl., ¶ 9; exh. B, at p. 24 [Arbitration Agreement, part A].)

Each cause of action in the Complaint falls within this broad scope, including the seventh cause of action for defamation, or slander *per se*, which alleges that defendant stated that "Plaintiff was faking his disability and/or need for workplace accommodations which ultimately resulted in his termination" and "asserted that Plaintiff was a poor employee, was terminated for cause, and not deserving of gainful employment." (Complaint, ¶ 104.)

2. The Evidence Shows that Plaintiff Signed the Arbitration Agreement

Plaintiff challenges the enforceability of the Arbitration Agreement. His declaration contradicts defendant's contention that plaintiff signed the Arbitration Agreement electronically (*see* Perez Decl., Opp., ¶¶ 6-13), and electronic signatures are the only kind that the Tamada Declaration attempts to show. (Suppl. Tamada Decl., ¶¶ 7-17, & exhs. A-E). However, even though plaintiff declares that he does not recall signing the Arbitration Agreement, defendant's evidence shows that plaintiff logged into defendant's onboarding system with his email address, authenticated his identity with a onetime passcode, and accepted the Arbitration Agreement. Plaintiff has not offered any evidence that anyone else signed the agreement in his place or on his behalf. Though plaintiff challenges defendant's showing, plaintiff's declaration that he does not remember signing the agreement does not overcome nor even necessarily conflict with defendant's showing that he did.

3. The Arbitration Agreement is Minimally Procedurally Unconscionable

Plaintiff also challenges the validity of the Arbitration Agreement for unconscionability. As to procedural unconscionability, plaintiff asserts that although he is not comfortable reading English, he was presented with about ten documents to sign in approximately five minutes and told that he could not take them home, so that he had insufficient time to read or understand them. Plaintiff further asserts that the Arbitration Agreement's allocation of attorney's fees, its binding plaintiff to rules with which he was not provided, and its waiver and third-party provisions which benefit defendant alone all constitute its substantive unconscionability.

However, even a contract of adhesion is not necessarily procedurally unconscionable:

> It is well settled that adhesion contracts in the employment context, that is, those contracts offered to employees on a take-it-or-leave-it basis, typically contain some aspects of procedural unconscionability." Assuming the Agreement here is adhesive in character, "this adhesive aspect of an agreement is not dispositive." Courts have observed that "[w]hen, as here, there is no other indication of oppression or surprise, 'the degree of procedural unconscionability of an adhesion agreement is low, and the agreement will be enforceable unless the degree of substantive unconscionability is high.' [Citations.]

(*Peng v. First Republic Bank* (2013) 219 Cal.App.4th 1462, 1470, multiple citations omitted.)

Where he was asked to sign various documents by defendant when he was first employed, it was plaintiff's burden to take steps to learn the content of the agreements he signed:

> Generally, a party may not avoid enforcement of an arbitration provision because the party has limited proficiency in the English language. If a party does not speak or understand English sufficiently to comprehend a contract in English, it is incumbent upon the party to have it read or explained to him or her.
>
> An exception to the general rule applies when a party was fraudulently induced to sign the contract. This exception is inapplicable here, because Caballero does not contend Premier Care defrauded him or prevented him from learning the contract's terms. He simply states that, to the best of his recollection, he was not presented with an Arbitration Agreement in Spanish or an Arbitration Agreement in English that was explained to him. He cites no authority suggesting it was Premier Care's initial burden to ascertain whether he could understand the English version. All Caballero had to do was tell Elstein or one of Premier Care's Spanish-speaking

> employees that he cannot read English and the burden would have shifted to Premier Care to explain the contents of the Arbitration Agreement. His decision to sign a document he could not read is not a basis for avoiding an arbitration agreement.

(*Caballero v. Premier Care Simi Valley LLC* (2021) 69 Cal.App.5th 512, 518-19 (*Caballero*), multiple citations omitted.)

Plaintiff does not claim that he was fraudulently induced to sign the Arbitration Agreement. Rather, he declares that:

> 7. I was given about five minutes to sign approximately ten documents. No one told me that I could take the documents home, and I did not have enough time to read or understand them before signing.
>
> 8. No one ever told me that I was giving up my right to a jury trial or my right to go to court. No one explained arbitration to me. No one offered to explain the documents to me in Spanish or gave me a version of them in Spanish.
>
> 9. No one ever gave me a Mutual Arbitration Agreement to sign. I did not ask for a Spanish copy of any arbitration agreement because no one ever told me that such a document existed.

(Perez Decl., ¶¶ 7-9.)

Plaintiff's declaration does not show that the burden to explain the contents of the Arbitration Agreement shifted to defendant under *Caballero*. Although plaintiff states that no one told plaintiff that he could take the documents home, nor offered him a Spanish translation, nor notified him that there was such a document as a Spanish translation, he does not aver that he told defendant that he could not read English, nor that he was otherwise prevented from learning the terms of the agreement that he signed.

Meanwhile, defendant's evidence shows that plaintiff signed the Arbitration Agreement without any time constraint. (Suppl. Tamada Decl., ¶ 13.) Defendant's evidence also shows that plaintiff had the option to download the Offer Letter that includes the arbitration agreement. (*Id*., ¶¶ 12 & 9, & exh. B).

4. The Arbitration Agreement is Not Substantively Unconscionable

In his Opposition, plaintiff asserts that the Arbitration Agreement is substantively unconscionable as to its allocation of attorney's fees. The Arbitration Agreement provides that, "The parties shall pay their own attorneys' fees and litigation costs associated with the arbitration, *except as otherwise awarded by the arbitrator*." (Suppl. Tamada Decl., ¶ 9, exh. B, at p. 26 [Arbitration Agreement, part C, emphasis added].) Defendant contends that the Arbitration

Agreement *allows* the arbitrator to award fees as would a judge. Plaintiff's authority clarifies that:

> In a FEHA case, unless it would be unjust, a prevailing plaintiff should recover attorney fees, but a prevailing defendant is awarded fees only if the case was frivolous or filed in bad faith. [citations] Here, the agreements provide that the prevailing party is entitled to attorney fees, without any limitation for a frivolous action or one brought in bad faith. This violates *Armendariz.* [citations] Defendants argue this merely means the arbitrator has the authority to impose attorney fees in line with FEHA. But nothing in the agreement or the arbitration manual supports this claim.

(*Wherry v. Award, Inc.* (2011) 192 Cal.App.4th 1242, 1249 (*Wherry*), citations omitted.)

Thus, if the arbitrator were merely allowed but not constrained to comply with federal law, the Arbitration Agreement would not escape substantive unconscionability under *Wherry*. However, the Arbitration Agreement expressly constrains the arbitrator's award of attorney's fees by law, providing that, "The arbitrator can order the same individual remedies that a judge could in a court of law, including injunctive relief and *attorneys' fees to the extent permitted by law*[.]" (Suppl. Tamada Decl., ¶ 9, exh. B, at p. 26 [Arbitration Agreement, part C, emphasis added].)

Plaintiff further asserts that the Arbitration Agreement is substantively unconscionable because it binds plaintiff to rules with which he was not provided. In its Reply, ABM asserts that failure to provide the rules is not unconscionable, citing *Baltazar v. Forever 21, Inc*. (2016) 62 Cal.4th 1237 (*Baltazar*). *Baltazar* provides that:

> [Plaintiff's] argument accordingly might have force if her unconscionability challenge concerned some element of the AAA rules of which she had been unaware when she signed the arbitration agreement. But her challenge to the enforcement of the agreement has nothing to do with the AAA rules; her challenge concerns only matters that were clearly delineated in the agreement she signed. [Defendant]'s failure to attach the AAA rules therefore does not affect our consideration of [Plaintiff]'s claims of substantive unconscionability.

(*Baltazar*, *supra*, 62 Cal.4th at p. 1246.)

Here, plaintiff's challenge does not concern an element of the rules which were not provided, but only matters that are clearly delineated in the Arbitration Agreement, and thus falls under *Baltazar*.

In response to plaintiff's assertions that the Arbitration Agreement's waiver and third-party provisions benefit defendant alone, ABM shows that there are no carveouts for defendant's claims against plaintiff. (Suppl. Tamada Decl., ¶ 9, exh. B, at p. 26 [Arbitration Agreement, part A].)

Further, the third-party language extends coverage of the Arbitration Agreement to claims brought against a third party, but not in a one-sided manner:

> This Agreement includes any Covered Claim brought against a third-party, including but not limited to any client(s) and/or vendor(s) of the Company, and this provision can be enforced by any such third-party through a motion to compel arbitration, to the extent necessary.

(*Ibid*.)

5. The Agreement Applies to All Defendants

Defendant Rodriguez is entitled to the benefit of the agreement. "If, as the complaint alleges, the individual defendants, though not signatories, were acting as agents for the Rams, then they are entitled to the benefit of the arbitration provisions." (*Dryer v. Los Angeles Rams* (1985) 40 Cal.3d 406, 418, citation omitted.)

D. Conclusion

The Motion is **GRANTED**, and this action is **STAYED** pending the completion of arbitration. (9 U.S.C. § 3; Code Civ. Proc., § 1281.4.)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendants' counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM LINE 13

26-UDL-00556 CARLOTTA CT., LLC VS. BRITTANY L PICKETT ROSE

CARLOTTA CT., LLC	STEVEN T. NAUMCHIK
BRITTANY L PICKETT ROSE	

DEFENDANT'S MOTION FOR RELIEF FROM DEFAULT

TENTATIVE RULING:

See Line 14.

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26-UDL-00556 CARLOTTA CT., LLC VS. BRITTANY L. PICKETT ROSE

CARLOTTA CT., LLC STEVEN T. NAUMCHIK
BRITTANY L. PICKETT ROSE

DEFENDANT'S MOTION TO QUASH SERVICE OF SUMMONS

TENTATIVE RULING:

Defendant's motion to quash service is **GRANTED**. The motion to set aside the default judgment is **DENIED as moot**.

On June 4, 2026, pursuant to an application filed on June 3, 2026, the civil commissioner issued an order authorizing posting and mailing of the summons and complaint. (June 4, 2026 Order.) Pursuant to Code of Civil Procedure, section 415.45, subdivision (b), "[t]he court shall order the summons to be posted on the premises in a manner most likely to give actual notice to the party to be served and direct that a copy of the summons and of the complaint be forthwith mailed by certified mail to such party at the party's last known address." Subsection (c) provides that "[s]ervice of summons in this manner is deemed complete on the 10th day after posting and mailing."

The process server's declaration states that he served defendant "[b]y posting and mailing" the summons and complaint "per C.C.P 415.45 at the address shown in item #4, on Jun 6, 2026 at 3:39 PM and mailing of the same by certified mail, to the address shown in item #4, on Jun 6, 2026 from Santa Clara, California."

Defendant's declaration states that she was "undergoing medical care during the relevant time period. As a result, I was not consistently at the property, and I was not in a position to discover any alleged posting. I was not aware that a posting was actually done at the premises." She further states that "[t]he certified mailing associated with the posting procedure was returned to sender. I understand this from the USPS tracking history showing that the item was marked "Unclaimed/Being Returned to Sender" and later "Delivered, To Original Sender.'" (See USPS tracking, attached to Declaration of Brittany L. Picket-Rose.) Indeed, it appears that mailing was never successfully completed and the package was returned to the sender on July 13, 2026. (*Ibid*.) Accordingly, service was not completed and is ordered **QUASHED**.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

POSTED: 3:00 PM